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|-------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------|--------------------------------------|-------------------------------------------|----------------------------------------------|--------------------------------------------------------|-------------------------------------------------------------------------------------|------------------------------------------|
|  <b>Internal Case Management System<br/>Worksheet - Case Closing</b> |                                    |                                      |                                           |                                              | <b>Top Allegation</b><br>USE OF FORCE -<br>LEVEL 3     | <b>Group</b><br>G54-GROUP 54 -<br>FORCE<br><b>Date of This Report</b><br>11/02/2018 |                                          |
| <b>Date Reported</b><br>06/02/2018                                                                                                                    | <b>Date Assigned</b><br>06/02/2018 | <b>IAB Log No.</b><br>2018-<br>21476 | <b>Case No.</b><br>(G54) FI-2018-<br>1216 | <b>Folder Type</b><br>FORCE<br>INVESTIGATION | <b>Preliminary Case Type</b><br>FORCE<br>INVESTIGATION | <b>Follow-Up No.</b>                                                                | <b>Worksheet Tracking No.</b><br>3304653 |

|                                                                      |                                    |                               |
|----------------------------------------------------------------------|------------------------------------|-------------------------------|
| <b>Topic/Subject</b><br>(Case Closing) CASE CLOSING- UNSUBSTANTIATED | <b>Activity Date</b><br>11/02/2018 | <b>Activity Time</b><br>16:56 |
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|                               |                       |                         |
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| <b>Referred to Group</b><br>- | <b>Conferred With</b> | <b>Next Review Date</b> |
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**Closing Statement**

Case #  
FI-2018-1216

Log #  
2018-21476

Subject Officer(s):  
PO Jonathan Jastemski, Tax #944676, 101 Precinct  
Date of Appointment: 07/09/2007  
Probation (at time of incident): No  
Current Duty Status: Active

Date Case Received:  
June 6, 2018

Date of Occurrence:  
June 1, 2018

Administrative Statute of Limitations Expires:  
December 1, 2019

Classification:  
C2-Non Steering

Investigator:  
Det. Charlene Moore, Tax #932157

Team Leader:  
LT Giuseppe Ganci, Tax #932686

Overall Case Disposition:  
Unsubstantiated

Details:  
Log #2018-21476  
On Saturday June 2, 2018 at 0550 hours Sgt. Matthew Jagoda contacted the IAB Command Center to report that PO Jonathan Jastemski arrested a male, [REDACTED] for operating a motorcycle in a park populated with children. PO Jastemski deemed it necessary to tackle [REDACTED] off the motorcycle because he refused to be arrested. [REDACTED] was transported to the 101 precinct and processed where he made no complaints of pain or force. [REDACTED] was transported to Queens Central Booking and at 0141 hours he complained to EMS personnel that his knee hurt from the arrest. He was transported to Saint John's Episcopal Hospital where he was treated for a fracture to his right patella (kneecap). Call out investigation was conducted by Group 54 in regards.

Identification and Interview of Complainant:  
The complainant, [REDACTED] known to the Department under NYSID # [REDACTED] DOB: [REDACTED] M/B/50yo, who resides at [REDACTED] was interviewed by IAB investigators on June 2, 2018.

On Saturday June 2, 2018 at approximately 1100 hours, while at the 101 Precinct, Internal Affairs investigators interviewed [REDACTED] who stated he was seated on a bench with his friend [REDACTED] who was watching her children in the park. [REDACTED] stated that he was in the park with his motorcycle and admitted to giving the children a ride on the motorcycle in

the park. [REDACTED] stated that [REDACTED] alerted him that the police were approaching and to move the motorcycle out of the way. [REDACTED] stated the police were driving as if they were responding to a "murder scene" so he mounted his bike and attempted to drive away at approximately 15 mph. At this time, [REDACTED] stated that the officer in the passenger seat jumped out and without warning tackled him to the ground causing the motorcycle to land on top of him. He was then placed in handcuffs and stated that he was not punched, kicked or struck by any officer at any time during the incident. [REDACTED] stated he was transported to the Precinct where he told the officers that he was injured and needed medical attention however was informed to go to the hospital after he received a Desk Appearance Ticket because going to the hospital will slow down the process.

A background check of [REDACTED]'s arrest history revealed [REDACTED]. A search of the CCRB database revealed (1) case (#201804626) which is for this current incident. After conducting a search of the IAPRO system, it revealed negative results for [REDACTED] having any prior complaints. A search of ICMS revealed (1) case featuring [REDACTED] which is this current case.

#### Identification and Interview of Witnesses:

The witness, [REDACTED] who is a friend of [REDACTED] was seated with him at the incident location watching her children play in the park. [REDACTED] is F/B/29yo, who resides at [REDACTED] she was interviewed by investigators on June 2, 2018.

On Saturday June 2, 2018 at approximately 1000 hours, Internal Affairs Investigators interviewed [REDACTED] who stated that she was in the park with her friend [REDACTED] (last name unknown), watching her children play basketball. [REDACTED] stated that [REDACTED] came into the park and joined them placing his motorcycle on the ground. [REDACTED] stated she saw the police approaching and warned [REDACTED] of their presence. At this time [REDACTED] stated that [REDACTED] mounted the motorcycle and proceeded to drive off; she stated that he did this because she believes he was scared. [REDACTED] stated that an officer jumped out of the car and dove onto [REDACTED] causing him to fall and the motorcycle to land on top of him. [REDACTED] stated that none of the officers on the scene used unnecessary force in the apprehension.

The witness [REDACTED] (last name unknown), who was seated on the bench at the incident location. [REDACTED] who resides at [REDACTED] she was interviewed by investigators on June 3, 2018. On Sunday June 3, 2018 at approximately 2245 hours, Internal Affairs investigators interviewed [REDACTED] who stated she was seated on the bench with her friend [REDACTED] when [REDACTED] walked over with his motorcycle and talked for about one minute before a marked police car drove up and officers exited the vehicle. [REDACTED] stated that at this time [REDACTED] became nervous because he was carrying marijuana. At this time [REDACTED] states, [REDACTED] attempted to flee the officers by pushing his motorcycle around them. One of the officers then tackled [REDACTED] from behind causing him to fall and the one of his legs to get tangled with the motorcycle. [REDACTED] stated the officers then helped [REDACTED] to his feet and placed him in handcuffs there was no further force used.

#### Canvass:

A video canvass was conducted at and around the vicinity of the incident location however it yielded negative results.

[REDACTED] provided video of the incident which showed [REDACTED] laying on the motorcycle and PO Jastemski along with two other officers (PO Conti and PO Egerter) placing handcuffs on him.

[REDACTED] provided a second video which was obtained from [REDACTED] The video shows [REDACTED] being helped up from the ground, in handcuffs; there is a verbal exchange between him and the officers. [REDACTED] is escorted to the passenger side of the RMP where he is searched and he is placed into the back of the marked RMP. [REDACTED] can be heard complaining that his handcuffs are too tight. The handcuffs were loosened by one of the officers as [REDACTED] sits in the back of the RMP.

#### Identification of Subject Officer:

[REDACTED] was shown a photo array and was able to positively identify PO Jastemski stating, "This person is the arresting officer and I am very sure he is person who assaulted me on my motorcycle."

Sgt. Jagoda, contacted the IAB Command Center on June 2, 2018 and notified that PO Jastemski made the arrest of [REDACTED] and needed to tackle him in order to prevent him from fleeing.

Sgt. Nicholas Otarola, Tax #934677, 101 Precinct Integrity Control Officer, was emailed a copy of video footage capturing the incident which was obtained during the course of this investigation. Sgt. Otarola positively identified the subject and witness officers in the video.

#### Review of Department Records:

>Arrest Report # [REDACTED]

Date/Time of Arrest: [REDACTED]

Location of Arrest: [REDACTED]

Charges: [REDACTED]



Defendant: [REDACTED]  
Arresting Officer: [REDACTED]  
Supervising Officer: [REDACTED]

>Complaint Report #2018-101-[REDACTED]

Occurrence Location: rear of [REDACTED]

Occurrence Info: [REDACTED]

Case Status: [REDACTED]

Classification: [REDACTED]

Arrests: [REDACTED]

Vehicle: [REDACTED]

Details: [REDACTED]

>Command Log- The 101 Precinct for Friday June 1, 2018 at 1922 hours was reviewed and detailed the following information:  
A/O: PO Jastemski, Tax #944676, 101 Pct.; Deft.: [REDACTED]; Physical/Mental Condition: Apparently Normal; 0205 hours 84 at St. John's Episcopal Hospital; 0455 hours Return to Command

>PETS-

1) Invoice # [REDACTED], PETS # [REDACTED], Property Type: Vehicle/Boat, Category: Arrest Evidence, Invoicing Officer: PO Jastemski, Tax #944676, Vehicle Details: [REDACTED], Model # [REDACTED], VIN # [REDACTED], Remarks: Vehicle is being vouchered as arrest evidence in regards to arrest # [REDACTED]

2) Invoice # [REDACTED], PETS # [REDACTED], Property Type: Controlled Substance, Property Category: Arrest Evidence, Item Details: (1) marijuana, Remarks: Item vouchered as arrest evidence

3) Invoice # [REDACTED], PETS # [REDACTED], Property Type: General Property, Property Category: Safekeeping, Item Details: (1) helmet, (2) gloves, (2) other accessories, (3) keys, (1) other tools, (1) cell phone accessories, (1) cell phone, Remarks: Items are being vouchered as safekeeping

>Roll Call- the 101 Precinct 3rd Platoon Roll Call for Friday June 2, 2018, was reviewed and detailed the following information:  
Desk Officer: Lt. Gomez, Tax #906355, Patrol Supervisor: Sgt. Rosaschi, Tax #947436, NCO assignments: PO Jastemski, Tax #944676, PO Conti, Tax #945610, PO Egerter, Tax #948929

>RMP List- the 101 Precinct 3rd Platoon RMP list for Friday June 2, 2018, was reviewed and detailed the following information:  
Desk Officer: Lt. Gomez, Tax #906355, vehicle #3827 assigned to NCO

>TRI- # [REDACTED]  
Reporting Officer: PO Jastemski, Tax #944676, 101 Pct.  
Incident Date/Time: 06/01/2018 @ 1900 hours Friday  
Location: [REDACTED]  
Body Worn Camera: No  
Subject: [REDACTED]  
Actions taken by MOS: force used, forcible take down  
Reason for Force: fleeing suspect  
Subject Injuries: None, no injury  
Reviewing Supervisor: Sgt. Garrity, Tax #901588, 101 Pct.  
Approved by: Lt. Menze, Tax #916211, 101 Pct.

>Activity Log Entries for PO Jastemski

ACTIVITY LOG #B497152

Friday: 6/1/18 [REDACTED]

Assignment: 101 Pct/ NCO

1745: RMP 3827 9653 3/4 tank Ng cont

1900: 1 motorcycle stopped R/O [REDACTED]

19 12 1 under- [REDACTED], P DOB [REDACTED]

Arrest # [REDACTED] safe keeping voucher [REDACTED]

0008: Arrest Evidence Voucher [REDACTED]

0735: Motorcycle voucher complete

[REDACTED]: EOT PO (signature) 6764

Computer and Related Background Checks:

>IAPro

(03) OG cases

(00) M cases



(01) C case:

-12/29/2011 case #C11-0989: FADO-Unnecessary Force. While attempting to affect an arrest, defendant fled the location and upon apprehension, while resisting arrest, defendant suffered a laceration to the top of his head which required seven (7) staples. (UNSUBSTANTIATED)

>ICMS

(15) OG cases:

-11/15/17 case #OG17-23762 FADO Force-Handcuffs Used to Cause Pain. Complainant claimed that the S/O put his handcuffs on extremely tight causing injury.

-09/19/17 case #OG17-18800 FADO Force-Other Force. Complainant states he was pulled over in a car stop and S/O spoke rudely and shoved him in the process.

-09/21/16 case #OG16-19256 Use of Force-Level 2. Complainant states he was being placed under arrest, and was slammed to the ground and hit in the face; suffering a black eye, and bruises

(01) M cases

(00) C cases

(02) FI cases:

-06/01/2018 #FI18-1216 Use of Force-Level 3 (CURRENT CASE)

-01/22/2018 #FI18-0138 Use of Force-Level 2 (INFO & INTELLIGENCE) S/O was attempting to remove the strings out of defendant's sweatpants, when he became combative. S/O officers used a forcible takedown to gain control of defendant.

(01) F cases:

-04/25/2016: #F16-1007 Prisoner Incident-Injured-Prior to NYPD Custody (FILE) S/O's were attempting to conduct a car stop of a motorcyclist when he fled the location and crashed into another vehicle. As a result, defendant sustained an injury to his chin.

>Central Personnel Index

None

>Personnel Profile

Name: PO Jonathan Jastemski

Tax: #944676

Shield: #6764

Date of Appointment: 07/09/2007

Duty Status: Active

Sick: (9) events (not chronic)

Arrest History: (142) total arrests- (41) Felonies, (90) Misdemeanors, (10) Violations, (01) Infractions, (00) Resisting, (00) Other

Force/ Disciplinary Monitoring History: None

Department Recognitions: (02) Excellent Police Duty, (01) Meritorious Police Duty

Last Three Evaluations: 4.0, 4.0, 3.5

Conferrals Conducted:

ADA Theresa Smith, Queens County District Attorney's Office Integrity Bureau: On Thursday July 5, 2018, the investigator conferred with ADA Smith regarding this case who stated that the District Attorney's Office has no intentions to prosecute PO Jastemski.

Proactive Measures:

None

Other Information of Investigative Value:

>CCRB case- On Monday June 6, 2018, CCRB generated case #201804626 which was assigned to Investigator Olga Bentin regarding this incident. Inv. Bentin made numerous attempts to set up an in person interview with CCRB, however [REDACTED] failed to show. After failed attempts to contact [REDACTED] via phone, and certified letter, the board recommended that this case be closed as Complainant Uncooperative.

>Notice of Claim- On July 26, 2018 [REDACTED] filed a lawsuit against PO Jastemski. This claim is filed through Attorney Greg Garber, Esq. for the amount of \$3,000,000 (three million dollars). Nature of the claim is as follows: false arrest, false imprisonment, excessive force, assault and battery, violation of Civil Rights, malicious prosecution, negligent infliction of emotional distress, intentional infliction of emotional distress by the City of New York and the New York City Police Department.

Patrol Guide 206-13 Hearings:

On Wednesday August 1, 2018, PO Paul Egerter, Tax #948929, of the 101 Precinct was interviewed by IAB, Group 54 investigators as a witness officer. PO Egerter stated that on Friday June 1, 2018 he was assigned to work as 101 NCO in Sector D and performed a [REDACTED] tour. PO Egerter stated that he was assigned to marked SUV #3827, in uniform with his partners PO Conti and PO Jastemski. PO Egerter stated he and his partners responded to the rear of [REDACTED] because it was a part of their routine patrol. After entering the park, PO Egerter stated that he noticed [REDACTED] standing next to his motorcycle; upon sight of the officers, [REDACTED] put on his gloves and helmet and attempted to drive away. At this time PO Egerter stated that PO Jastemski exited the vehicle yelling verbal commands such as "STOP" and "STAY"; he went to grab at [REDACTED] off the motorcycle causing [REDACTED] to fall and the motorcycle to fall on top of his right leg. PO Egerter stated himself and PO Conti assisted PO Jastemski with the apprehension of [REDACTED] by lifting him up to his feet. He stated he did not observe anyone nor did he punch, kick, or strike [REDACTED] PO Egerter stated that he did ask [REDACTED] if he was ok and if he needed any medical attention, which he declined; he stated he believes [REDACTED] may have sustained his injury when the motorcycle fell on him. PO Egerter stated [REDACTED] made no indication or complained of injury. PO



Egerter stated that he transported [REDACTED] to the precinct and he never made any statements or indications of being injured. PO Egerter stated that [REDACTED] walked unassisted. His interactions ended with [REDACTED] after he lodged him into the cell area.

On Wednesday August 1, 2018, PO Michael Conti, Tax #945610, of the 101 Precinct was interviewed by IAB, Group 54 investigators as a witness officer. PO Conti stated that on Friday June 1, 2018 he was assigned to work as Housing NCO and performed a tour of [REDACTED]. He was the operator of marked vehicle #3827 with his partners PO Jastemski and PO Egerter. PO Conti stated that he responded to the rear of [REDACTED] to conduct routine patrol in the housing area. PO Conti stated that he drove the car into the playground where he noticed [REDACTED] and his motorcycle; he stated when [REDACTED] saw them approaching he immediately put on his gear, mounted his motorcycle and turned it on. At this time, PO Jastemski gave a verbal command "□STOP□", and went to grab [REDACTED]. PO Conti stated he did not see how it happened but by the time he parked the car and exited the vehicle, PO Jastemski and [REDACTED] were on the ground. PO Conti stated himself and PO Egerter assisted PO Jastemski in the apprehension of [REDACTED]. He stated the only resistance that occurred is when [REDACTED] attempted to flee the location on the motorcycle. PO Conti stated that at no time did he or his partners use excessive force against [REDACTED] nor did [REDACTED] complain of injury or request medical attention, however PO Conti stated that he did notice [REDACTED] rubbing his knee at the stationhouse and offered him to go to the hospital but he refused. He stated he did not inform anyone of his conversation with [REDACTED].

On Wednesday September 19, 2018, Sgt. Alexander Rosaschi, Tax #947436, of the 101 Precinct was interviewed by IAB, Group 54 investigators as a witness officer. Sgt. Rosaschi stated that on Friday June 1, 2018 he was assigned to work as 101 Precinct Patrol Supervisor and performed a [REDACTED] tour. Sgt. Rosaschi stated he responded to the rear of [REDACTED] because he was called over the radio to verify an arrest. Sgt. Rosaschi stated that upon arrival he noticed [REDACTED] in handcuffs and the officers standing around the location. He stated he did not recall the exact conversation but the arrest was regarding [REDACTED] on a motorcycle in the park and when stopped he attempted to flee the location. Sgt. Rosaschi stated he briefly spoke with [REDACTED] however he did not have any visible injuries nor did he complain of any injuries. Sgt. Rosaschi stated that he instructed the officers to take [REDACTED] to the stationhouse for arrest processing. He stated he did instruct PO Jastemski to do a TRI report for the forcible takedown but never was made aware of any injuries.

On Wednesday September 19, 2018, PO Jastemski was interviewed by IAB, Group 54 investigators as the subject officer. PO Jastemski stated that on Friday June 1, 2018 he was assigned to NCO of Edgemere Houses and was working [REDACTED] hours. PO Jastemski stated that he and his partners, PO Conti and PO Egerter were driving in a marked police vehicle and witnessed a motorcycle in the park. He stated that at this time the park was populated with children playing and parents. At this time, PO Jastemski stated that they looped around the parked to go investigate the situation when he noticed [REDACTED] put on his gear, mount the motorcycle and start it up. PO Jastemski stated he stood in front of the motorcycle and attempted to grab the clutch to prevent [REDACTED] from driving off; however [REDACTED] pulled the throttle and began to drive. PO Jastemski then pulled [REDACTED] by the arm causing them both to fall to the ground. PO Jastemski stated that after being placed in handcuffs, [REDACTED] was compliant. PO Jastemski stated that at no time did himself or anyone else punch, kick, or strike [REDACTED] nor did he complain or appear injured. He stated that he did not transport [REDACTED] to the stationhouse because he drove the motorcycle back and also stated that he did not transport [REDACTED] to Central Bookings therefore he was unaware of his injuries.

Supervisory Deficiencies:

N/A

Conclusion:

This investigation disclosed that on June 2, 2018, Sgt. Jagoda from the 101 Precinct called the IAB Command Center to report that [REDACTED] sustained a fractured patella (knee cap) prior to being in police custody pursuant to arrest number [REDACTED]. On Friday June 1, 2018, PO Jonathan Jastemski and his partners, PO Michael Conti and PO Paul Egerter were assigned as the Neighborhood Coordination Officers. The officers were conducting routine patrol in the rear of [REDACTED] when they observed a man, known to the Department as [REDACTED] in Arverne Park on a motorcycle. [REDACTED] was seated in the park with (2) two female witnesses who alerted [REDACTED] that the police were coming. At the sight of the officers, [REDACTED] put on his helmet and gloves and began slowly driving off on his motorcycle. PO Jastemski who was seated in the recorder position, jumped out the vehicle and ran over giving verbal commands to [REDACTED] saying, "□Stop□" PO Jastemski attempted to stop [REDACTED] from driving away by standing in front of the motorcycle and grabbing the clutch lever, however [REDACTED] pulled the throttle and began driving with PO Jastemski in front of him. PO Jastemski felt it necessary at this time to grab [REDACTED] and forcibly take him down off the motorcycle. As [REDACTED] went down to the ground, the motorcycle fell with him landing on his right leg. PO Conti and PO Egerter parked the police car and came out to assist PO Jastemski who was now on the ground with [REDACTED]. PO Jastemski was able to place handcuffs on [REDACTED] as the other officers moved motorcycle off and helped bring [REDACTED] to his feet. [REDACTED] was then escorted unassisted to the rear passenger side of the police car where he was searched and placed in the vehicle. At no time did [REDACTED] complain of injury nor did he appear injured. Sgt. Rosaschi responded to the location, where PO Jastemski explained the actions he took to apprehend [REDACTED]. Sgt. Rosaschi directed the officer to return to the 101 Precinct for arrest processing and generate a TRI report which he did. At the Precinct, PO Conti noticed [REDACTED] rubbing his right knee. He asked [REDACTED] if he was okay or needed medical attention, which he declined. [REDACTED] was transported to Queens Central Bookings late that evening, and while there he expressed to the EMS personnel that his knee was hurting. [REDACTED] was transported to the hospital and was diagnosed and treated for a broken right patella (knee cap). Witness video obtained does not show any force being utilized; the videos show [REDACTED] already in handcuffs with no signs of any visible injuries. [REDACTED] stated that after being taken to the ground and handcuffed, he was not punched, kicked or struck by any officers nor did he ever feel that excessive force was used against him. A witness on the scene did state that [REDACTED] was trying to flee on the motorcycle because he had a small amount of marijuana on him. The



Use of Force was properly documented on TRI report # [REDACTED]. The allegation of Use of Force Level 3 will be closed as Info and Intelligence. [REDACTED] did sustain a broken knee cap during this incident. The allegation of Prisoner Injured in Police Custody is being closed as Info and Intelligence. [REDACTED] was on a motorcycle attempting to flee the location when PO Jastemski approached him; PO Jastemski did use the forcible takedown maneuver in order to gain control and place [REDACTED] under arrest. The allegation of FADO Force-Physical Force will be closed as Info and Intelligence and was investigated by CCRB with a disposition of Complainant Uncooperative. The allegation of Fail to Provide Medical Care is being closed as Unsubstantiated. [REDACTED] suffered a broken knee cap in connection with arrest # [REDACTED]. [REDACTED] was transported to Queens Central Bookings where he complained of leg pain to EMS staff and was taken to Saint John's Episcopal Hospital where he received treatment. The investigation is unable to prove or disprove that PO Jastemski utilized unnecessary or excessive force to apprehend [REDACTED]. As a result this allegation of Force-Physical Force will be closed as Unsubstantiated. The overall case disposition is Unsubstantiated.

#### Subjects Involved

| Name                                                             | Status                    | Sex  | Race  | Dob        |
|------------------------------------------------------------------|---------------------------|------|-------|------------|
| 944676<br>JONATHAN<br>JASTEMSKI<br>POM (101-<br>101<br>PRECINCT) | UNIFORM MEMBER OF SERVICE | MALE | WHITE | [REDACTED] |

#### Allegations

| 1 | Full Allegation        | Classification  | Allegation Index                 | Allegation Date | Finding                     | Finding Date |
|---|------------------------|-----------------|----------------------------------|-----------------|-----------------------------|--------------|
|   | Use of Force - Level 3 | Arrest Effected | Force Investigation Notification | 06/02/2018      | 04 - Info. and Intelligence | 10/17/2018   |

#### Comments

This investigation disclosed that on Friday June 1, 2018, based on the Use of Force investigative responsibilities and reporting guide, this matter was investigated by the Internal Affairs Bureau as a Use of Force- Level 3 because the complainant [REDACTED] suffered a fracture to his right patella (kneecap) due to his motorcycle falling on top of him when being arrested by PO Jonathan Jastemski. As such the allegation of Use of Force- Level 3 will be closed as Information and Intelligence.

| 2 | Full Allegation             | Classification  | Allegation Index | Allegation Date | Finding                     | Finding Date |
|---|-----------------------------|-----------------|------------------|-----------------|-----------------------------|--------------|
|   | FADO Force - Physical Force | Arrest Effected | O-Other          | 06/04/2018      | 04 - Info. and Intelligence | 10/17/2018   |

#### Comments

The investigation disclosed that on June 6, 2018, the Internal Affairs Bureau created a spin off log #2018-21978 to the Civilian Complaint Review Board for Informational Purposes Only regarding this incident. CCRB is investigating the allegation of FADO- Physical Force against PO Jonathan Jastemski under case #201804626, the board disposition for this case is Uncooperative Complainant. The allegation of FADO Physical Force will be closed as Information and Intelligence.

| 3 | Full Allegation        | Classification  | Allegation Index | Allegation Date | Finding              | Finding Date |
|---|------------------------|-----------------|------------------|-----------------|----------------------|--------------|
|   | Force - Physical Force | Arrest Effected | O-Other          | 10/17/2018      | 12 - Unsubstantiated | 10/17/2018   |

#### Comments

This investigation disclosed that on June 2, 2018 Sgt. Matthew Jagoda contacted the IAB Command Center to report that [REDACTED] sustained a fractured right patella (kneecap) when PO Jonathan Jastemski, Tax #944676 attempted to stop him from riding a motorcycle in a public playground which was populated with children and adults. Due to non-compliance, PO Jastemski deemed it necessary to utilize a forcible takedown maneuver which led to [REDACTED] being arrested for [REDACTED]. PO Jastemski was conducting routine patrol in the rear of [REDACTED] as the NCO along with PO Conti and PO Egerter (witness officers). [REDACTED] stated that on June 1, 2018 at approximately 1912 hours, he was in the park with his motorcycle, giving the kids in the park a ride. [REDACTED] stated that he was warned by his female friend, who he was seated next to, to move his motorcycle out of the way because the police were approaching the location. [REDACTED] stated that when the officers responded it was as if they were responding to a "murder scene" because of the manner they were driving. [REDACTED] stated that upon noticing the officers driving up, he jumped on his motorcycle and proceeded to ride no more than 15 mph; at this time [REDACTED] stated an officer (PO Jastemski) jumped out of the vehicle and tackled him to the ground causing the motorcycle to fall on top of him. [REDACTED] stated he immediately felt pain to his leg. He stated that while on the ground he



was handcuffed and no further force was used against him. [REDACTED] was transported to the 101 Precinct for arrest processing without further incident. After arriving to Queens Central Bookings, [REDACTED] complained to EMS staff that he had pain to his knee from the arrest. [REDACTED] was transported to Saint John's Episcopal and diagnosed by [REDACTED] with a right patella fracture. [REDACTED] and [REDACTED] were witnesses to the arrest. [REDACTED] was interviewed by investigators and stated that she was seated in the playground with [REDACTED] and [REDACTED] whose motorcycle was parked. She stated that she alerted [REDACTED] the police were coming, when he mounted the motorcycle and began to drive away. At this time [REDACTED] stated one of the officers jumped out of the police car and tackled [REDACTED] to the ground; she states, when he was brought to the ground the motorcycle landed on his leg. [REDACTED] was in possession of video on her cellular phone which showed PO Jastemski placing handcuffs on [REDACTED] and the officers helping [REDACTED] from the ground with the motorcycle laying on top of one of his legs. The video does not show any force being utilized. [REDACTED] was interviewed by investigators and stated that herself, [REDACTED] and [REDACTED] were hanging out in the park when a marked police car approached the location. She stated that upon seeing the officers, [REDACTED] became nervous because he was in possession of a small amount of marijuana. As a result of his fears, [REDACTED] stated, [REDACTED] attempted to leave the location by [REDACTED] pushing away [REDACTED] on his motorcycle. She stated that at this time one of the officers tackled [REDACTED] from behind and brought him to the ground. [REDACTED] stated that [REDACTED] [REDACTED] was on top of the bike [REDACTED]. When asked to clarify the statement, [REDACTED] stated, [REDACTED] The video would explain it. [REDACTED] recorded a video on her cellular phone and sent the copy to [REDACTED] who uploaded it to YouTube. The video shows [REDACTED] being helped off the ground PO Egerter walking [REDACTED] who is unassisted, over to the marked SUV and performing a search of his garments before placing him into the vehicle. [REDACTED] can be heard complaining that his handcuffs are too tight and are loosened by PO Egerter. No force was used at any time during the recording. Patrol Guide hearings were conducted with PO Conti and PO Egerter who responded along with PO Jastemski to the location. PO Egerter stated that he was in the rear of the marked SUV when he and his partners pulled into the playground to question [REDACTED] regarding the motorcycle. PO Egerter stated, on sight of the officers, [REDACTED] immediately put on his gear and mounted his motorcycle. He stated at that time, PO Jastemski exited the vehicle and gave verbal commands to prevent [REDACTED] from driving away. PO Egerter stated that PO Jastemski grabbed [REDACTED] when he fell and the motorcycle fell on top of his right leg. PO Conti stated that he was the operator of the marked SUV when he and his partners observed [REDACTED] put on his gear and PO Jastemski jumped out the car giving verbal commands, reached out to grab [REDACTED] PO Conti did not know what happened at this point because he was operating the vehicle. PO Conti stated he saw PO Jastemski and [REDACTED] on the ground. He stated he went over and helped [REDACTED] off the ground after he was handcuffed. PO Conti stated [REDACTED] was rubbing his knee at the station house and he did offer him medical treatment, which he declined. PO Jastemski stated that on June 1, 2018 he was assigned to the NCO at the Edgemere Houses he states he was the recorder in the auto with PO Conti and PO Egerter. PO Jastemski states that while on patrol, he and his partners noticed a motorcycle in the playground on its kickstand. The officers circled around the park and when they approached he noticed [REDACTED] putting on his helmet and attempting to drive away. PO Jastemski stated that he jumped out of the vehicle in front of the motorcycle, giving verbal commands for [REDACTED] to stop, which he did not comply. At this time PO Jastemski felt that it was in his best interest to pull [REDACTED] off the motorcycle and bring him to the ground. PO Jastemski stated both he and [REDACTED] fell to the ground and the motorcycle came down with them. After PO Jastemski placed handcuffs on [REDACTED] he was stood up and PO Jastemski stated that [REDACTED] was able to walk on his own. PO Jastemski stated that he was transported to the station house without incident and when presented in front of the desk, [REDACTED] did not make any complaints of injury or pain. PO Jastemski stated at no time did he or any other officer punch, kick or strike [REDACTED] before or after he was handcuffed. PO Jastemski utilized and documented a forcible takedown to take [REDACTED] into custody. The Use of Force against [REDACTED] was properly documented on TRI report # [REDACTED]. PO Jastemski did not sustain any injuries during this incident. The investigation disclosed that there is insufficient evidence to prove or disprove that PO Jastemski utilized unnecessary or excessive force to apprehend [REDACTED]. As a result this allegation of Force-Physical Force will be closed as Unsubstantiated.

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| 4 | Full Allegation<br>Prisoner Incident - Injured in NYPD Custody - MOS Involved                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | Classification<br>Arrest Effected | Allegation Index<br>CI-Injured in Custody | Allegation Date<br>11/01/2018 | Finding<br>04 - Info. and Intelligence | Finding Date<br>10/17/2018 |
|   | <b>Comments</b><br>This investigation disclosed that on June 2, 2018 Sgt. Jagoda, of the 101 Precinct called the IAB Command Center to report that [REDACTED] suffered a fracture to his right patella when his motorcycle fell on top of him when PO Jastemski attempted to apprehend him for riding his motorcycle in a public playground populated with children and adults. [REDACTED] was transported to Queens Central Bookings where he complained to EMS personnel that he was feeling pain to his leg, stemming from the arrest. Medical records disclosed that [REDACTED] was diagnosed with a fractured right patella (kneecap). As a result the allegation of Prisoner Incident- Prior to NYPD Custody- MOS Involved will be closed as Information and Intelligence. |                                   |                                           |                               |                                        |                            |
| 5 | Full Allegation                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Classification                    | Allegation Index                          | Allegation Date<br>12/05/2018 | Finding<br>12 - Unsubstantiated        | Finding Date<br>12/05/2018 |







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